

S	E	R	V	E	D
August 15, 2016					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 16-14

T. PARKER HOST, INC.

v.

KINDER MORGAN LIQUIDS TERMINALS, LLC, ET AL.

**ORDER GRANTING CONSENT MOTION TO FURTHER EXTEND
TIME TO FILE RESPONSIVE PLEADINGS**

The parties have filed a third motion for extension of time for Respondents to answer or otherwise respond to the Complaint. *See T. Parker Host, Inc. v. Kinder Morgan Liquids Terminals, LLC, et al.*, FMC No. 16-14 (ALJ July 22, 2016) (Order Granting Respondents' Consent Motion for Extension of Time to File Responsive Pleadings); *T. Parker Host, Inc. v. Kinder Morgan Liquids Terminals, LLC, et al.*, FMC No. 16-14 (ALJ Aug. 3, 2016) (Order Granting Respondents' Consent Motion for Further Extension of Time to File Responsive Pleadings). The parties state:

The parties have been working diligently, cooperatively, and in good faith towards resolution of the matters that are the subject of this action. The parties have made good use of the time allowed by the Court to engage in robust discussions and to focus on productive settlement negotiations. Counsel for the parties have had numerous oral and written communications regarding potential settlement terms. Although substantial progress was made on a commercial solution acceptable to both sides, the parties' progress toward settlement appears to have stalled. The grant of the requested further extension is therefore consistent with Commission precedent and policy to promote an efficient disposition of this case by allowing for the orderly briefing and submission of responsive pleadings.

(Consent Motion to Further Extend Time to File Responsive Pleadings at 2.) The motion asks that the date to answer or otherwise respond to the Complaint be extended to August 22, 2016. (*Id.*)

The Commission established June 29, 2017, as the due date for an initial decision in this proceeding. *T. Parker Host, Inc. v. Kinder Morgan Liquids Terminals, LLC, et al.*, FMC No. 16-14 (FMC June 29, 2016) (Notice of Filing of Complaint and Assignment). Because the answer was originally due on or before July 25, 2016, *see T. Parker Host, Inc. v. Kinder Morgan Liquids Terminals, LLC, et al.*, FMC No. 16-14 (ALJ July 22, 2016) (Order Granting Respondents' Consent Motion for Extension of Time to File Responsive Pleadings), granting this motion will result in a delay in this proceeding totaling four weeks. Given the parties' representations that they are "working diligently, cooperatively, and in good faith towards resolution of the matters that are the subject of this action," they have stated good cause for extending by one more week the date by which Respondents must answer or otherwise respond to the Complaint. Therefore, the motion is **GRANTED. No further extensions will be granted.**



Clay G. Guthridge
Administrative Law Judge